

Intellectual Property Rights (IPR) Policy, Anti-Trust and Competitive Laws

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Bharat 6G Alliance

C DoT Campus, Mandi Road, Mehrauli, New Delhi-110030, India

 www.bharat6galliance.com,  info@bharat6galliance.com

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Table of Contents

Background.....	1
1. IPR Policy.....	1
1.1 Potential Standard Essential Patent.....	1
1.2 Technical Contributions and Patent Disclosure.....	1
1.3 No Licensing or Rights Grant.....	2
2. Antitrust and Competition Laws.....	2
3. Confidentiality Agreement.....	2
4. Contributions, Confidentiality and Licensing.....	3

Intellectual Property Rights (IPR) Policy, Anti-Trust and Competitive Laws

Background

Bharat 6G Alliance is an initiative of industry, academia, national research institutions, and standards organizations facilitated by the Government of India. The Alliance aims to promote a thriving ecosystem for research, design, prototyping, development, proof-of-concept testing, IPR creation, field testing, security, certification, and manufacturing of telecom products.

Society shall encourage research and related ecosystems (including startups and entrepreneurship) to pursue their innovations and new ideas in the 6G domain and other emerging technologies and translating into products and solutions. At the same time, it ensures that India accelerates and enhances its ability to take its rightful place in the world as a leading supplier of advanced telecom technologies and solutions that are affordable and contribute to the global good.

1. IPR Policy

The Bharat 6G Alliance ("Bharat6G") is committed to fostering research, collaboration, and dissemination of knowledge in the field of 6G technologies. The Alliance does not intend to develop standards, deliverables, or other work products that would require the use of patented technology. However, it acknowledges that technical contributions from its members may involve patented technology or claims that accelerate achievements of the goals of Bharat 6G vision.

1.1 Potential Standard Essential Patent

If a proposed deliverable or work product of Bharat6G is covered by a patent that may become essential (one whose use would be required for compliance with that deliverable), whereby the proposed deliverable or work product is adopted in a standard then if such a deliverable or work product is submitted by Bharat6G to the Telecommunications Standards Development Society, India (TSDSI), the IPR / Patent Policy of TSDSI shall apply.

1.2 Technical Contributions and Patent Disclosure

Expert/Working Groups (WGs) of Bharat6G often receive technical contributions from members. Such contributions may have technology, deliverables or work products covered by patents. Bharat6G may include this technical information in its reports for the purpose

Intellectual Property Rights (IPR) Policy, Anti-Trust and Competitive Laws

of knowledge dissemination. Therefore, it is hereby understood that:

- (a) Members disclose such information on a non-coercive, voluntary basis on their own volition and discretion.
- (b) The publication of such documents by Bharat6G does not, in any way, grant or license Bharat6G or its members any rights to use the patent other than for use on working on a project or publication during their contributory involvement on a Expert/Working Group.

1.3 No Licensing or Rights Grant

Bharat6G, through its publications and reports, does not confer any rights, licenses, or permissions to use any patented technology or claims included in such documents. Any use of patented technology referenced in Bharat6G reports (otherwise than as stipulated in sub-section (b) of sub-clause 1.2 of clause 1. IPR Policy) is subject to applicable intellectual property laws and the rights of the respective patent holders.

2. Antitrust and Competition Laws

The Bharat 6G Alliance shall operate in accordance with applicable antitrust and competition laws of India. It shall adhere to principles of openness, balance of interests, due process, and a meaningful appeals process. It must also be ensured that all decision-making processes are transparent and involve stakeholders from diverse backgrounds to avoid conflicts of interest and ensure fair competition. It is expected that Bharat 6G Alliance members are in compliance with all such Anti-Trust and Competition applicable laws and regulations of India that are in force.

3. Confidentiality Agreement

Generally, the Bharat 6G Alliance will not consider any contributions, presentations, or other documentation that is subject to any requirement of confidentiality or any restriction on its dissemination of its contents and ideas. All documents received by the Bharat 6G Alliance are made available to its members and the derivative works are posted publicly on its website. However, if for any reason, a document is received with an explicit Confidential noting / mark, then (as an exception and not as a rule) such documents will be classified internal and not be posted on the website under any circumstances unless the owner of the confidential information consents to

Intellectual Property Rights (IPR) Policy, Anti-Trust and Competitive Laws

such a disclosure, or if the information is in or enters the public domain for any other reason, or if government regulations or law require disclosure.

4. Contributions, Confidentiality and Licensing

In order that the Bharat 6G Alliance may facilitate, promote, and disseminate its work, it is necessary that each contributor licenses the Bharat 6G Alliance the necessary copyright rights to adapt, copy, and publicly distribute any contribution or submittal. In accordance with this policy, each contribution or document submitted to the Alliance is subject to an unlimited perpetual, non-exclusive, royalty-free, world-wide right, and license to the Alliance of any copyrights / patent rights of use in such contribution. This no cost license from each contributor shall include the right to copy, publish, and distribute the contribution in any way, and to modify and to prepare derivative works that are based on or incorporate all or part of the contribution.

Expert Group(s), Working Group(s) or other group(s) within the Alliance may agree that work on a specific project or by a specific subgroup should be kept confidential until either the confidential submissions are available to the public through no violation of confidentiality agreement(s) if any, or if incorporated into any work product of the group. Any decisions pertaining to confidentiality must be made at the initiation of a project or subgroup and must be clearly communicated to all participants. All contributions, agendas and work product containing confidential information must be clearly identified and marked. This confidential information, and any discussions thereof, shall not be shared outside of the group except as stipulated above.

In order for the successful execution of work program(s) under Bharat 6G Alliance, contributors fully understand and agree to the terms of a license which will be consistent with the terms of this document before submitting their work. This will avoid disputes over rights and usage of contributions. This includes an explicit understanding / arrangement that any and all to contributions are licensed to the Bharat 6G Alliance on a perpetual, non-exclusive, royalty-free basis.
